

Court No. - 3

Case :- WRIT - C No. - 20631 of 2022

Petitioner :- Tribhuwan Shivhare

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Hemlata Srivastava

Counsel for Respondent :- CSC, Gaurav Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Surendra Singh-I, J.

On the request of the learned counsel for the petitioner, the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Hamirpur is allowed to be impleaded as respondent no. 5.

The same correction in the array of parties to be carried out during the course of the day.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Gaurav Singh, learned counsel for the respondent Nos. 4 & 5.

This writ petition has been filed praying for the following relief:

"(I) issue a writ, order of direction in the nature of certiorari quashing the impugned recovery certificate dated 18.6.2022 issued by respondent no. 3 during pendency of this writ petition;

(II) issue a writ, order of direction in the nature of mandamus commanding the respondent no. 3 not to realize the amount of Rs. 4,86,030=00 from petitioner pursuant to impugned recovery certificate dated 18.6.2022 issued by respondent no. 3."

Sri Gaurav Singh, learned counsel for the respondent No. 4 & 5 states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No. 5, Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Hamirpur within four weeks from today along with a certified copy of this order.

In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 5 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 17.8.2022

Brijesh Maurya